

		may take judicial notice of the contracts upon which a plaintiff bases their complaint and may consider the contracts on a demurrer].) The hearing is continued to allow Plaintiff an opportunity to respond.
16	2017-00946231 Farah vs. Van Sickle	Motion – Other The Motion Pursuant to Code of Civil Procedure Section 664.6 to Have the Court Consider Extrinsic Evidence of Defendants’ Historical use of the Easements, and Determine Easement Terms Omitted in Defendants’ Second Amended Complaint, Motion for Summary Judgment, and the Parties’ Settlement Agreement and for an Award of Attorney’s Fees filed by Plaintiff/Cross-Defendant, Michael Farah, individually and as trustee of the Eric Wyser Charitable Trust is DENIED. The Court declines to rule on the objections filed by Defendants/Cross-Complainants, Rod Van Sickle and Kim Cashman (ROA 391) as immaterial to the Court’s ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 [“the trial court’s failure to rule expressly on any of Google’s evidentiary objections did not waive them on appeal”]; see Code Civ. Proc., § 437c(q).) Legal Standard As with any contract, the settlement agreement requires mutual consent: “The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 811, internal quotes omitted.) Moreover, to be binding, the agreement must be <i>sufficiently definite</i> to enable courts to give it an exact meaning. If an essential element is reserved for future agreement, it is not definite enough. (See <i>id.</i> at pp. 810-812 [incomplete terms in “deal point memorandum”].) Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (<i>Malouf Bros. v. Dixon</i> (1991) 230 Cal.App.3d 280, 284; see <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 795-796 [court may resolve reasonable disputes over terms of settlement agreement but may not modify terms from what was agreed to by parties].) In ruling on a motion under CCP § 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) For example, where the settlement agreement is <i>ambiguous</i>, the court is required to consider extrinsic evidence of the parties’ intent. (<i>Steller v. Sears, Roebuck & Co.</i> (2010) 189 Cal.App.4th 175, 183.) The CCP § 664.6 “authorizes the court to entertain challenges to the actual terms of the stipulation, that is, whether there actually was a

settlement, upon a motion.” (*Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.) Trial courts are authorized to interpret the terms and conditions to settlement. (*Id.*, at 566.) However, “nothing in section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 984, emphasis added, internal quotes omitted; see also *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448.) While the court may, under certain circumstances, reject a settlement agreement as a whole, it may *not* approve only *part* of it for § 664.6 enforcement without the parties' mutual consent. (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1375.)

Merits

After entry of judgment, Plaintiff/Cross-Defendant Michael Farah (Farah) appealed the court’s order granting the motion for summary judgment filed by Defendants/Cross-Complainants Rod Van Sickle (Van Sickle) and Kim Cashman (Cashman) (collectively, Defendants) on complaint and cross-complaint and denying Farah’s motion for summary judgment.

On 2/26/2020, while Farah’s appeal was pending, the parties entered into the subject settlement agreement (Agreement). The Recitals portion of the Agreement refers to the complaint filed by “Farah” and the cross-complaint, along with the amended cross-complaints, filed by Van Sickle against Farah. It references the cross-MSJs, the court’s rulings and judgment (attached as Exhibits A and B, respectively, to the Agreement), notice of appeal, memo of costs, and motion to tax costs. Paragraph N of the Agreements states: “The Parties desire to resolve, once and for all times all present, past and future controversies, claims, causes of action or purported causes of action, differences or disputes, both real and potential between the Parties, including but not limited to those arising as a result of the facts alleged in the Complaint and Cross-Complaint filed in this Action[.]”

Thereafter, Van Sickle and Cashman filed a Motion For Order Enforcing Settlement, which the court granted on 2/25/2021. In opposition to the motion, Farah argued, *inter alia*, the Agreement was unenforceable because it was missing material terms such as the legal description of the easement.

In the present motion, Farah asks the court to hear or consider extrinsic evidence to determine easement terms omitted from the Agreement, which he also contends were omitted from Defendants’ SACC and MSJ, and the Court's Order and Judgment, regarding Defendants’ historical use of the easements. Farah contends the easements are defective because they lack a legal description and seeks a court order limiting the scope of the easements to evidence of historical use by Defendants. Farah seeks this limitation because he now objects to permitting Defendants’ invitees use of the easements. (See Dveirin Decl., ¶11.)

		Defendants correctly argue the motion is essentially a motion for reconsideration. A motion for reconsideration must be filed within 10 days after notice of the ruling being challenged is served, and he must make a showing of new facts or circumstances that could not have been raised earlier. (Code of Civ. Proc., § 1008.) The “new or different facts, circumstances or law” must be information that the moving party could not, with reasonable diligence, have discovered or produced at the first hearing. (<i>New York Times Co. v. Sup.Ct. (Wall St. Network, Ltd.)</i> (2005) 135 Cal.App.4th 206, 212-213.) Here, a notice of entry of judgment concerning the court’s order on the parties’ cross-MSJs was served over six years ago and a notice of ruling on Defendants’ motion to enforce the settlement were served and filed over four years ago. A motion for reconsideration of either order is untimely. Farah also fails to demonstrate that there are new facts or circumstances that could not have been raised before. The same evidence was available when the court granted Defendants’ summary judgment motion, denied Farah’s summary judgment motion and granted Defendants’ motion to enforce the settlement. Farah argues he does not ask the court fully reconsider the Order entered on 5/25/2019, but the fact that the Order itself does not support Defendants’ position that the Order actually awarded a prescriptive easement to Defendants and their “invitees,” rather than merely state the Court’s observation that Defendants sought a “previously prescriptive easement for sue by them and their invitees.” However, the court has the inherent authority to correct judicial error in its <i>interim orders</i> at any time <i>prior to final judgment</i>. (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096–1097, 1105 & fn. 4, 1107–1108, emphasis added.) Final judgment was entered in this case long ago on 6/18/2019. (ROA No. 235.) The motion is DENIED
17	2024-01431664 <i>Wade vs. General Motors LLC</i>	Motion to Compel Deposition (Oral or Written) (Continued from 11/6) Plaintiff Julie Wade’s Motion to Compel Deposition and Production of Documents is GRANTED in part and DENIED in part. “If, after service of a deposition notice, a party to the action, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document described in the deposition notice.” (Code Civ. Proc. § 2025.450(a) (cleaned up).) When the deponent has failed to appear, the motion to compel must be accompanied by a declaration stating that the moving party “has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc. § 2025.450(b)(2).)